

The U.P. Essential Services Maintenance Act, 1966

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State of Uttar Pradesh - Act

The U.P. Essential Services Maintenance Act, 1966

UTTAR PRADESH

India

The U.P. Essential Services Maintenance Act, 1966

Act 30 of 1966

Published on 30 December 1966

Commenced on 30 December 1966

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The U.P. Essential Services Maintenance Act, 1966

U.P. Act

No. 30 of 1966

[Dated 30th December, 1966]

Received the assent of the Governor on December 30, 1966 and was published in U.P. Gazette, Extraordinary, dated 31st December, 1966.

An Act to provide for the maintenance of certain essential services in Uttar Pradesh and for matters connected therewith.

It is hereby enacted in the Seventeenth Year of the Republic of India as follows :

1.

Short title and extent.

(1)

This Act may be called the Uttar Pradesh Essential Services Maintenance Act, 1966.

(2)

It extends to the whole of Uttar Pradesh.

2.

Definition.

- In this Act, unless the context otherwise requires,-

(a)

"essential service" means-

(i)

any public service in connexion with the affairs of the State of Uttar Pradesh;

(ii)

[any service under an educational institution recognised by the Director of Education, or by the Board of High School and Intermediate Education, Uttar Pradesh, or service under a University incorporated by or under an Uttar Pradesh Act including any affiliated college, associated college, autonomous college, constituent college or Institute of any such University;]

[Substituted by U.P. Act 16 of 1982, Section 2 (w.e.f. 1st December, 1981).]

(iii)

any service under a local authority ;

(b)

"strike" means any cessation of work (including any unauthorised absence from duty) by a body of persons employed in any essential service acting in combination or a concerted refusal or a refusal under a common understanding of any number of persons who are or have been so employed to continue to work;

(iv)

[any service in connection with the U.P. State Co-operative Land Development Bank or any other State Level Co-operative Society, mentioned in clause (a-4) of Section 2 of the Uttar Pradesh Co-operative Societies Act, 1965, or its member cooperative societies, registered under the said Act;

[Inserted by U.P. Act 24 of 1983, Section 2 (w.e.f. 2nd July, 1983).]

(v)

any service in connection with any Government Company, in which not less than fifty-one per cent, paid-up share capital is held by the State Government, or other statutory body (by whatever name called) established or constituted by or under any Uttar Pradesh Act;

(vi)

any other service connected with matters with respect to which State Legislature has power to make laws and which the State Government, being of opinion that strikes therein would prejudicially affect the maintenance of any public utility service, the public safety or the maintenance of supplies and services necessary for the life of the community or would result in the infliction of great hardship on the community, may, by notification declare to be essential service for the purpose of the Act.]

3.

Power to prohibit strikes in certain employments.

- If the State Government is satisfied that in the public interest it is necessary or expedient so to do, it may, by general or special order, prohibit strikes in any essential service specified in the order.

(2)

An order made under sub-section (1) shall be published in such manner as the State Government considers best calculated to bring it to the notice of the persons affected by the order.

(3)

An order made under sub-section (1) shall be in operation for six months only, but the State Government may by a like order, extend it for any period not exceeding six months if it is satisfied that in the public interest it is necessary or expedient so to do.

(4)

During the period of operation of an order under sub-section (1), any strike by persons employed in any essential

service to which the order relates shall, whether it is declared or commenced before or after the commencement of the order, be illegal.

4.

Penalty for illegal strikes.

- Any person who commences a strike which is illegal under this Act or goes or remains on, or otherwise takes part in, any such strike shall be punishable with imprisonment for a term which may extend to six months or with fine which may extend to five hundred rupees or with both.

5.

Penalty for instigation, etc.

- Any person who instigates or incites other persons to take part in, or otherwise acts in furtherance of, a strike which is or would be illegal under this Act shall be punishable with imprisonment for a term which may extend to one year or with fine which may extend to one thousand rupees or with both.

6.

Penalty for giving financial aid to illegal strikes.

- Any person who knowingly expends or supplies any money in furtherance or support of a strike which is or would be illegal under this Act shall be punishable with imprisonment for a term which may extend to one year or with fine which may extend to one thousand rupees or with both.

7.

Power to arrest without warrant.

- Any police officer may arrest without warrant any person who is reasonably suspected of having committed any offence punishable under this Act.

8.

Act to override other State Laws.

- The provisions of this Act and of any order issued thereunder shall have effect notwithstanding anything inconsistent therewith contained in any other Uttar Pradesh Act for the time being in force.

9.

Repeal and saving.

(1)

The Uttar Pradesh Essential Services Maintenance Ordinance, 1966 (U.P. Ordinance VI of 1966), is hereby repealed.

(2)

Notwithstanding such repeal, anything done or any action taken under the said Ordinance shall be deemed to have been done or taken under this Act as if this Act had commenced on the twenty-eighth day of August, 1966.

Notifications

[1] Notification No. 258-A/11-Kh-2-K (3)-68, dated January 22, 1968, published in U.P. Government Gazette, Extraordinary, dated 22nd January, 1968.

Whereas the State Government is satisfied that in the public interest it is necessary and expedient so to do;

Now, therefore, the Governor in exercise of the powers under sub-section (1) of Section 3 of the Uttar Pradesh Essential Services Maintenance Act, 1966 (Uttar Pradesh Act No. XXX of 1966), is pleased to order that during a period of six months from the date of publication of this order in the Gazette, strikes are hereby prohibited in all services of the Nagar Mahapalika, Kanpur, and under sub-section (2) of the said section to further direct that this order shall be published in the Official Gazette with a view to bring it to the notice of the persons affected by it.

[2] Notification No. 84/2/66-CX, dated April 20, 1968, published in U.P. Gazette, Extraordinary, dated 20th April, 1968.

Whereas the State Government is satisfied that in the public interest it is necessary and expedient so to do, the Governor is pleased, under subsection (1) of Section 3 of the U.P. Essential Services Maintenance Act, 1966 (Act No. XXX of 1966), to order that during a period of six months from the publication of this Order, strikes are hereby prohibited in all public services in connection with the affairs of the State of Uttar Pradesh.

Under sub-section (2) of the said section the Governor is further pleased to direct that this Order shall be published in the Official Gazette.

[3] Notification No 2500-A/XI-A-7S-68, dated April 20, 1968, published in U.P. Gazette, Extraordinary, dated 20th April, 1968.

Whereas the State Government is satisfied that in the public interest it is necessary and expedient so to do, the

Governor in exercise of the powers under sub-section (1) of Section 3 of the Uttar Pradesh Essential Services (Maintenance) Act, 1966 (Uttar Pradesh Act No. XXX of 1966), is pleased to order, in continuation of Notification No. 258-A/II-Kh/2-K (3)-68, dated January 22, 1968, that during a period of six months from the date of publication of this order in the Gazette, strikes are prohibited in all services under the Nagar Mahapalikas of Lucknow, Allahabad, Varanasi and Agra and all Nagarpalikas of Uttar Pradesh, and under sub-section (2) of the said section to further direct that this order shall be published in the Official Gazette with a view to bringing it to the notice of the persons affected by it.

[4] Noti No. 2492-K/XXXIII-I-63-68, dated April 30, 1968, published in U.P. Gazette, Extra, dated 30th April, 1968.

Whereas the State Government is satisfied that in the public interest, it is necessary and expedient so to do, the Governor in exercise of the powers under sub-section (1) of Section 3 of the Uttar Pradesh Essential Services Maintenance Act, 1966 (U.P. Act No. XXX of 1966), is pleased to order that during a period of six months from the date of publication of this order in the Official Gazette, strikes are prohibited in all services under the Zila Parishads and Antarim Zila Parishads of Uttar Pradesh and under subsection (2) of the said section, to further direct that this order shall be published in the Official Gazette with a view to bringing it to the notice of the persons affected by it.

[5] Notification No. 59/2/68/CX, dated October 18, 1968, published in U.P. Gazette, Extraordinary, dated 18th October, 1968.

Whereas the State Government is satisfied that in the public interest it is necessary and expedient so to do, the Governor is pleased under subsection (3) of Section 3 of the U.P. Essential Services Maintenance Act, 1966 (Act No. XXX of 1966), to extend for a period of six months, Order No. 4/2/66-CX, dated April 20, 1968; which was issued under sub-section (1) of section 3 of the U.P. Essential Services Maintenance Act, 1966, prohibiting strikes in all public services in connection with the affairs of the State of Uttar Pradesh.

The Governor is further pleased to direct that this order shall be published in the Official Gazette.

[6] Notification No. 7189-A/XI/Ka-7-G-68, dated November 1, 1968, published in U.P. Gazette, Extraordinary, dated 1st November, 1968.

Whereas the State Government is satisfied that in the public interest it is necessary and expedient so to do, the Governor, in exercise of the powers under sub-section (1) of Section 3 of the Uttar Pradesh Essential Services Maintenance Act, 1966 (Uttar Pradesh Act No. XXX of 1966), is pleased to order that during a period of six months from the date of publication of this order in the Official Gazette, strikes are prohibited in all services under all Nagar Mahapalikas and Nagarpalikas of Uttar Pradesh, and under sub-section (2) of the said section of the said Act to further direct that this order shall be published in the Official Gazette, with a view to bringing it to the notice of the persons affected by it.

[7] Notification No. A-6797/XV-196, dated November 27, 1968, published in U.P. Gazette, Extraordinary, dated 27th November, 1968.

Whereas the State Government is satisfied that in the public interest it is necessary and expedient so to do, the Governor is pleased, under subsection (1) of Section 3 of the U.P. Essential Services Maintenance Act, 1966 (Act No. XXX of 1966), to order that during a period of six months from the publication of this Order, strikes are hereby prohibited in all the services under an educational institution recognised by the Director of Education, Uttar Pradesh, or by the Board of High School and Intermediate Education, Uttar Pradesh or the services under a University incorporated by or under an Uttar Pradesh Act.

Under sub-section (2) of the said section the Governor is further pleased to direct that this Order shall be published in the Official Gazette.

[8] Notification No. 359-A/XI-Ka-7-G-68, dated January 29, 1970, published in U.P. Gazette, Extraordinary, dated 31st January, 1970.

Where as the State Government is satisfied that in the public interest it is necessary and expedient so to do, the Governor in exercise of the powers under sub-section (1) of Section 3 of the Uttar Pradesh Essential Services Maintenance Act, 1966 (U.P. Act No. XXX of 1966), is pleased to order, in continuation of Notification No. 5072-A/XI-Ka-7-G-68, dated July 30, 1969, that during a period of six months from January 31, 1970, strikes are prohibited in all services under all Nagar Mahapalikas and all Nagarpalikas of Uttar Pradesh and under sub-section (2) of the said section to further direct that this order shall be published in the Official Gazette with a view to bringing it to the notice of the persons affected by it.

[9] Noti No. 6154-A/XI/A-65/(SK)-70, dated August 18, 1971, published in U.P. Gazette, Extraordinary, dated 19th August, 1971.

Whereas, the State Government is satisfied that in the public interest it is necessary and expedient so to do, the Governor, in exercise of the powers under sub-section (1) of Section 3 of the Uttar Pradesh Essential Services Maintenance Act, 1966 (Uttar Pradesh Act No. XXX of 1966), is pleased to order that during a period of six months from the date of publication of this Order in the Official Gazette, strikes are prohibited in all services under all Nagar Mahapalikas and Nagarpalikas of Uttar Pradesh and under sub-section (2) of the said section to further direct that this order shall be published in the Official Gazette, with a view to bringing it to the notice of the persons affected by it.

[10] Notification No. 1870-T/IX-1-78-332-SA-77, dated June 15, 1978, published in U.P. Gazette, Extraordinary, dated 15th June, 1978.

Whereas, the State Government is satisfied that in the public interest, it is necessary and expedient so to do, the Governor in exercise of the powers under sub-section (1) of Section 3 of the Uttar Pradesh Essential Services Maintenance Act, 1966 (Uttar Pradesh Act No. XXX of 1966), is pleased to order that during a period of six months commencing from June, 15, 1978, strikes are prohibited in all services under all Nagar Mahapalikas, Nagarpalikas, Town Areas, Notified Areas and Local Development Authorities of Uttar Pradesh under sub-section (2) of the said section to further direct that this Order shall be published in the official Gazette, with a view to bringing it to the notice of persons affected by it.

[11] Notification No. 2189/XXXVI-5, dated July 11, 1978, published in U.P. Gazette, Extraordinary, dated 11th July, 1978.

Whereas the State Government is satisfied that in the public interest it is necessary and expedient so to do, the Governor, in exercise of the powers under sub-section (1) of Section 3 of the U.P. Essential Services Maintenance Act, 1966, hereby prohibits with immediate effect strike in any public service connected with the Industrial Training Institutes run by the State Government and directs under sub-section (2) of Section 3 of the said Act that this order be published in the Gazette.

[12] Notification No. 1417-Section 13/XVI-1978, dated September 6, 1978, published in U.P. Gazette, Extraordinary, dated 6th September, 1978.

Whereas, the State Government is satisfied that in the public interest it is necessary and expedient so to do, the Governor, in exercise of the powers under sub-section (1) of Section 3 of the Uttar Pradesh Essential Services Maintenance Act, 1966, hereby prohibits with immediate effect strike in the services of doctors, nurses and other hospital staff of all categories under the State, and under sub-section (2) of Section 3 of the said Act directs that this order be published in the Gazette.

[13] Notification No. 6713-P-2/23/78-4-EH-66, dated November 6, 1978, published in U.P. Gazette, Extraordinary, dated 6th November, 1978.

Whereas the State Government is satisfied that in the public interest it is necessary and expedient so to do, the Governor is pleased under subsection (1) of Section 3 of the U.P. Essential Services Maintenance Act, 1966 (U.P. Act No. XXX of 1966), to order that during a period of six months from the publication of this Order, strikes are prohibited in all services in connection with the affairs of the Uttar Pradesh State Electricity Board.

2. Under sub-section (2) of the said section, the Governor is further pleased to direct that this Order shall be published in the gazette.

[14] Notification No. 1256-T/9-1-79-332-SA-77, dated February 8, 1979, published in U.P. Gazette, Extraordinary, dated 9th February, 1979.

Whereas, the State Government is satisfied that in the public interest it is necessary and expedient so to do, the Governor, in exercise of the powers under sub-section (1) of Section 3 of the Uttar Pradesh Essential Services Maintenance Act, 1966 (Uttar Pradesh Act No. XXX of 1966), is pleased to order that during a period of six months commencing from February 10, 1979, strikes are prohibited in all services under all Nagar Mahapalikas, Nagarpalikas, Town Areas, Notified Areas and Local Development Authorities of Uttar Pradesh under sub-section (2) of the said section to further direct that this Order shall be published in the official Gazette, with a view to bringing to the notice of the persons affected by it.

[15] Notification No. 2477/V-7-79, dated May 7, 1979, published in U.P. Gazette, Extraordinary, dated 7th May, 1979.

The Governor being satisfied that in the public interest it is necessary and expedient so to do, is pleased in exercise of the powers under subsection (1) of Section 3 of the Uttar Pradesh Essential Services Maintenance Act, 1966, to prohibit with immediate effect strike in the services of doctors, nurses, pharmacists and other hospital staff of all categories under the State, and under sub-section (2) of Section 3 of the said Act to direct that this Order be published in the

Gazette.

[16] Notification No. 3142-P/II-23-79-4-EH-66, dated May 24, 1979, published in U.P. Gazette, Extraordinary, dated 24th May, 1979.

Whereas the State Government is satisfied that in the public interest it is necessary and expedient so to do, the Governor is pleased under subsection (1) of Section 3 of the Uttar Pradesh Essential Services Maintenance Act, 1966 (U.P. Act No. XXX of 1966), to order that during a period of six months from the publication of this Order, strikes are prohibited in all services under the Uttar Pradesh State Electricity Board.

2. Under sub-section (2) of the said section, the Governor is further pleased to direct that this Order shall be published in the Gazette.

[17] Notification No. 6368/XLIII-1979, dated November 16, 1979, published in U.P. Gazette, Extraordinary, dated 16th November, 1979.

Whereas the State Government is satisfied that in the public interest it is necessary and expedient so to do ;

Now, therefore, the Governor, in exercise of the powers under subsection (1) of Section 3 of the U.P. Essential Services Maintenance Act, 1966, hereby prohibits with immediate effect strike by ministerial employee belonging to group 'C' in the offices subordinate to the Government of Uttar Pradesh and directs under sub-section (2) of the said Section 3 that this Order be published in the Gazette.

[18] Notification No. 4690/XXII-214(1)-79, dated November 24, 1979, published in U.P. Gazette, Extraordinary, dated 24th November, 1979.

Being satisfied that in the public interest it is necessary and expedient so to do, the Governor in exercise of the powers under sub-section (1) of Section 3 of the Uttar Pradesh Essential Services Maintenance Act, 1966 (U.P. Act No. XXX of 1966) is pleased to prohibit strikes in all public services in connection with the affairs of the Uttar Pradesh Jail organisation.

2. Under sub-section (2) of the aforesaid section the Governor is further pleased to direct that this order shall be published in the Gazette.

[19] Notification No. 8947-T/IX-1-79-332-SA-77, dated November 17, 1979, published in U.P. Gazette, Extraordinary, dated 17th November, 1979.

Whereas the State Government is satisfied that in the public interest, it is necessary and expedient so to do, the Governor in exercise of the powers under sub-section (1) of Section 3 of the Uttar Pradesh Essential Services Maintenance Act, 1966 (U.P. Act No. XXX of 1966), is pleased to order that during a period of six months commencing from November 17, 1979 strikes are prohibited in all services under all Nagar Mahapalikas, Nagarpalikas, Town Areas, Notified Areas and Local Development Authorities of Uttar Pradesh and under sub-section (2) of the said section to further direct that this Order shall be published in the Official Gazette, with a view to bringing it to the notice of the persons affected by it.

[20] Notification No. 6352-P/II-23-79-4-EH-66, dated November 20, 1979, published in U.P. Gazette, Extraordinary, dated 24th November, 1979.

Whereas the State Government is satisfied that it is necessary and expedient so to do in the public interest; now, therefore, in exercise of the powers under sub-sections (1) and (3) of Section 3 of the Uttar Pradesh Essential Services Maintenance Act, 1966 (U.P. Act No. XXX of 1966), the Governor is pleased to extend for a period of six months with effect from November 24, 1979, the operation of Order No. 3142-P/II-23-79-4 EH-66, dated May 24, 1979, which was issued under sub-section (1) of Section 3 of the said, Act, prohibiting strike by services in connection with the affairs of the Uttar Pradesh State Electricity Board and under sub-section -(2) of the said section of the said Act, the Governor is further pleased to direct that this Order shall be published in the Gazette.

[21] Notification No. 5749/12-C-I-79-Bhandaragar-22-79, dated December 11, 1979, published in U.P. Gazette, Extraordinary, dated 11th December, 1979.

Whereas, the State Government is satisfied that it is necessary and expedient so to do in the public interest ;

Now, therefore, in exercise of the powers under sub-section (1) of Section 3 of the Uttar Pradesh Essential Services Maintenance Act, 1966 (U.P. Act

No. 30 of 1966

), the Governor is pleased to order that for a period of six months from the date of publication of this Order, strike by services under the Uttar Pradesh State Warehousing Corporation in hereby prohibited and under sub-section (2) of the said section the Governor is further pleased to direct that this Order shall be published in the Gazette.

[22] Notification No. 2573/XXX-2-80-60-N-73, dated June 15, 1980, published in U.P. Gazette, Extraordinary, dated 15th June, 1980.

In exercise of the powers under sub-section (1) of Section 3 of the Uttar Pradesh Essential Services Maintenance Act, 1966 (U.P. Act No. 30 of 1966

), the Governor is pleased to order that for a period of six months from the date of publication of this Order, strike by services in connection with the affairs of the Uttar Pradesh State Road Transport Corporation, or services under the Transport Commissioner, Uttar Pradesh is hereby prohibited and under sub-section (2) of the said section to direct that this order shall be published in the official Gazette.

[23] Notification No. 2650/XLIII-3-ER-1980, dated May 19, 1980, published in U.P. Gazette, Extraordinary, dated 19th May, 1980.

Whereas, the State Government is satisfied that in the public interest it is necessary and expedient so to do;

Now, therefore, the Governor in exercise of the powers under sub-section (1) of Section 3 of the U.P. Essential Services Maintenance Act, 1966, hereby prohibits with immediate effect strike by any ministerial employee belonging to Group 'C' in the offices subordinate to the Government of Uttar Pradesh and directs under sub-section (2) of the said Section 3 that this Order be published in the Gazette.

[24] Notification No. 191-P-2-80-23-4-EH-66, dated May 23, 1980, published in U.P. Gazette, Extraordinary, dated 24th May, 1980.

In exercise of the powers under sub-section (1) of Section 3 of the Uttar Pradesh Essential Services Maintenance Act, 1966 (U.P. Act No. XXX of 1966), the Governor is pleased to order that for a period six months from the date of publication of this order, strikes are prohibited in all services under the Uttar Pradesh State Electricity Board and under sub-section (2) of the said section, to direct that this Order shall be published in the Gazette.

[25] Notification No. 5441/XV-10-80, dated October 7, 1980, published in U.P. Gazette, Extraordinary, dated 7th October, 1980.

In exercise of the powers under sub-section (1) of Section 3 of the Uttar Pradesh Essential Services Maintenance Act, 1966 (U.P. Act No. XXX of 1966), the Governor hereby prohibits, with immediate effect, strikes in every non-teaching service under the Agra University and directs under sub-section (2) of the said section, that this Order be published in the official Gazette.

[26] Notification No. 7434/XV-2-27(51)-80, dated October 7, 1980, published in U.P. Gazette, Extraordinary, dated 7th October, 1980.

The Governor, in exercise of the powers under sub-section (1) of Section 3 of the Uttar Pradesh Essential Services Maintenance Act, 1966 (U.P. Act No. XXX of 1966), hereby prohibits, with immediate effect, strikes in any service under the Board of High School and Intermediate Education, U.P., and to direct under sub-section (2) of the said section that this order be published in the Gazette.

[27] Notification No. 5677/XXII-422-80, dated November 29, 1980, published in U.P. Gazette, Extraordinary, dated 29th November, 1980.

Being satisfied that in the public interest it is necessary and expedient so to do, the Governor, in exercise of the powers under sub-section (1) of Section 3 of the Uttar Pradesh Essential Services Maintenance Act, 1966 (U.P. Act No. XXX of 1966), is pleased to prohibit strikes in all public services, in connection with the affairs of the Uttar Pradesh Jail Organisation.

Under sub-section (2) of the aforesaid section, the Governor is further pleased to direct that this Order shall be published in the Gazette.

[28] Notification No. 5254/V-7-2519-79, dated January 30, 1981, published in U.P. Gazette (Extra), dated 31st January, 1981.

The Governor being satisfied that in the public interest it is necessary and expedient so to do, is pleased, in exercise of the powers under subsection (1) of Section 3 of the U.P. Essential Services Maintenance Act, 1966 (U.P. Act 30 of 1966

), to prohibit, with immediate effect, strike in the services of doctors, nurses, pharmacists and other hospital staffs of all categories under the State, and under sub-section (2) of Section 3 of the said Act to direct that this Order be published in the Gazette.

[29] Notification No. 217/IX-3-81-354-W-79, dated April 9, 1981, published in U.P. Gazette, Extraordinary, dated 9th

April, 1981.

In exercise of the powers under sub-section (1) of Section 3 of the Uttar Pradesh Essential Services Maintenance Act, 1966 (U.P. Act No. XXX of 1966), the Governor is pleased to order that during a period of six months commencing from the 9th of April, 1981, strikes are prohibited in all the services under all the Jal Sansthanas constituted under the Uttar Pradesh Water Supply and Sewerage Act, 1975 (U.P. Act No. 43 of 1975). Under sub-section (2) of Section 3 of the aforesaid Act of 1966, the Governor is further pleased to direct that this Order shall be published in the Gazette, with a view to bringing it to the notice of all persons, affected by this Order.

[30] Notification No. 3594/XXX-2-60-N-73, dated June 15, 1981, published in U.P. Gazette, Extraordinary, dated 15th June, 1981.

In exercise of the powers under sub-section (1) of Section 3 of the Uttar Pradesh Essential Services Maintenance Act, 1966 (U.P. Act No. XXX of 1966), the Governor is pleased to prohibit for a period of six months, with effect from June 15, 1981, all strikes in services in connection with the affairs of the Uttar Pradesh State Road Transport Corporation and also by services under the Transport Commissioner, Uttar Pradesh.

The Governor is further pleased to direct under sub-section (2) of Section 3 of the said Act, that this Order shall be published in the Official Gazette.

[31] Notification No. 3749/XV-10-81-2(5)/81, dated July 18, 1981, published in U.P. Gazette, Extraordinary, dated 18th July, 1981.

In exercise of the powers under sub-section (1) of Section 3 of the Uttar Pradesh Essential Services Maintenance Act, 1966 (U.P. Act No. XXX of 1966), the Governor being satisfied that in the public interest it is necessary and expedient so to do, is pleased to prohibit, with immediate effect, strikes in every non-teaching service in the Colleges affiliated to the Agra University and is further pleased to direct under sub-section (2) of the said section that this Order shall be published in the gazette.

[32] Notification No. 768-C(IFC)/XII-C-1-81, dated April 23, 1981, published in U.P. Gazette, Extraordinary, dated 23rd April, 1981.

The Governor being satisfied that it is necessary and expedient in public interest so to do, is pleased under sub-section (1) of Section 3 of the Uttar Pradesh Essential Services Maintenance Act, 1966 (U.P. Act No. XXX of 1966) to prohibit with immediate effect strike in any service under the Uttar Pradesh Rajya Sahakari Bhumi Vikas Bank Ltd., and further to direct under sub-section (2) of Section 3 of the said Act that this Order be published in the Gazette.

[33] Notification No. 2496/XII-C-1-81 Bhandaragar-22-79, dated May 27, 1981, published in U.P. Gazette, Extraordinary, dated 27th May, 1981.

In exercise of the powers under sub-section (1) of Section 3 of the Uttar Pradesh Essential Services Maintenance Act, 1966 (U.P. Act No. 30 of 1966

), the Governor is pleased to order that for a period of six months from the date of publication of this Order, strike by services under the Uttar Pradesh State Warehousing Corporation is hereby prohibited and under sub-section (2) of the said section the Governor is further pleased to direct that this order shall be published in the Gazette.

[34] Notification No. 3240-P-2/81-23-4-EH-66, dated May 29, 1981, published in U.P. Gazette, Extraordinary, dated 29th May, 1981.

In exercise of the powers under sub-section (1) of Section 3 of the Uttar Pradesh Essential Services Maintenance Act, 1966 (U.P. Act No. XXX of 1966), the Governor is pleased to order that during a period of six months from the date of publication of this order, strikes are prohibited in all services under the Uttar Pradesh State Electricity Board; and under sub-section (2) of the said section to direct that this order shall be published in the Gazette.

[35] Notification No. 7280-P-2/81-23-4-EH-66, dated November 23, 1981, published in U.P. Gazette, Extraordinary, dated 23rd November, 1981.

In exercise of the powers under sub-section (3) of Section 3 of the Uttar Pradesh Essential Services Maintenance Act, 1966 (U.P. Act No. 30 of 1966

), the Governor is pleased to extend for a period of six months with effect from November 28, 1981, the operation of Order No. 3240-P-2/81-23-4-EH-66, dated May 29, 1981, issued under sub-section (1) of Section 3 of the said Act, prohibiting strikes in all services under the Uttar Pradesh State Electricity Board and under sub-section (2) of the said section of the said Act, the Governor is further pleased to direct that this Order shall be published in the Extraordinary

Gazette.

[36] Notification No. 7640/XIV-1-81-21-31, dated December 5, 1981, published in U.P. Gazette, Extraordinary, dated 5th December, 1981.

In exercise of the powers under sub-section (1) of Section 3 of the Uttar Pradesh Essential Services Maintenance Act, 1966 (U.P. Act No. XXX of 1966), the Governor is pleased to prohibit, with immediate effect, strikes in all Public Services in connection with the affairs of the State of Uttar Pradesh under the Forest Department, and the Governor is further pleased to direct under sub-section (2) of Section 3 of the said Act that this Order be published in the Gazette.

[37] Notification No. 7011/XXX-2-60-N-73, dated December 15, 1981, published in U.P. Gazette, Extraordinary, dated 15th December, 1981.

In exercise of the powers under sub-sections (1) and (3) of Section 3 of the Uttar Pradesh Essential Services Maintenance Act, 1966 (U.P. Act No. XXX of 1966), the Governor is pleased to extend for a period of six months with effect from December 15, 1981, the operation of Order No. 3594/XXX-2-60-N-73, dated June 15, 1981, which was issued under subsection (1) of Section 3 of the said Act, prohibiting strike by services in connection with the affairs of the Uttar Pradesh State Road Transport Corporation and also by services under the Transport Commissioner, Uttar Pradesh.

2. The Governor is further pleased to direct under sub-section (2) of Section 3 of the said Act, that this Order shall be published in the Official Gazette.

[38] Notification No. 817/EBR/XXIII(3)-72-EBR-82, dated March 3, 1982, published in U.P. Gazette, Extraordinary, dated 3rd March, 1982.

In exercise of the powers under sub-section (1) of Section 3 of the Uttar Pradesh Essential Services Maintenance Act, 1966, the Governor, hereby prohibits, with immediate effect strike in the service of all categories of Engineers and Junior Engineers and all other Technical Services in the State Public Works Department and under sub-section (2) of Section 3 of the said Act, the Governor, further directs that this Order be published in the Gazette.

[39] Notification No. 11574/ XXXVII-1-129-M-81, dated March 3, 1982, published in U.P. Gazette, Extraordinary, dated 3rd March, 1982.

In exercise of the powers under sub-section (1) of Section 3 of the Uttar Pradesh Essential Services Maintenance Act, 1966 (U.P. Act No. XXX of 1966), the Governor is pleased to prohibit, with immediate effect, the strike by the following categories of employees in the services of the Department of Agriculture Production and Rural Development, and under sub-section [2] of Section 3 of the and Act, the Governor is further pleased to direct that this Order shall be published in the official Gazette:

1. Block Development Officers.
2. Village Development Officers.
3. Ministerial staffs.
4. District Panchayat Raj Officers.
5. Assistant Development Officers (Panchayat).
6. Village Panchayat Adhikari.
7. Assistant Development Officer (Minor Irrigation).
8. Assistant Development Officer (Rural Engineering).
9. Boring Mechanic.

[40] Notification No. 1681 /XXXVII-1-31-HB-S2, dated March 5, 1982, published in U.P. Gazette, Extraordinary, dated 4th March, 1982.

Whereas, the State Government is satisfied that in the public interest, it is necessary and expedient so to do, the Governor, in exercise of the powers under sub-section (1) of Section 3 of the Uttar Pradesh Essential Services Maintenance Act, 1966 (Uttar Pradesh Act No. XXX of 1966), is pleased to order, that during a period of six months commencing from March 4, 1982, strike is prohibited in all services under the Uttar Pradesh Avas Evam Vikas Parishad, constituted under the Uttar Pradesh Avas Evam Vikas Parishad Adhiniyam, 1965 (U.P. Act No. 1 of 1966) and under sub-section (2) of Section 3 of the Uttar Pradesh Essential Services Maintenance Act, 1966, the Governor is further pleased to direct that this Order shall be published in the Gazette, with a view to bringing it to the notice of all the persons affected by this Order.

[41] Notification No. 2101-T/IX-I-82-232-Sa-77, dated March 4, 1982, published in U.P. Gazette, Extraordinary, dated 4th March, 1982.

Whereas the State Government is satisfied that in the public interest, it is necessary and expedient so to do, the Governor in exercise of the powers under sub-section (1) of Section 3 of the Uttar Pradesh Essential Services Maintenance Act, 1966 (Uttar Pradesh Act No. XXX of 1966) is pleased to order that during a period of six months commencing from February 24, 1982, strikes are prohibited in all services under all Nagar Mahapalikas, Nagarpalikas, Town Areas, Notified Areas and Local Development Authorities of Uttar Pradesh under sub-section (2) of the said section to further direct that this order shall be published in the official Gazette with a view to bringing it to the notice of the persons affected by it.

[42] Notification No. 1939/5-7-2519-79, dated March 12, 1982, published in U.P. Gazette, Extraordinary, dated 12th March, 1982.

The Governor, being satisfied that in the public interest it is necessary and expedient so to do, is pleased, in exercise of the powers under subsection (1) of Section 3 of the Uttar Pradesh Essential Services Maintenance Act, 1966 (U.P. Act No. 30 of 1966

) to prohibit, with immediate effect, strike by all categories of employees under the Directorates of Medical, Health and Family Welfare (including Medical Health Education), Ayurveda and Unani and Homeopathy, and also in the services of Doctors, Nurses, Pharmecists and staffs of all categories employed in or in connection with Hospitals and Medical Colleges (including Hospitals and Medical Colleges dealing in indigenous system of Medicine) under the State and under sub-section (2) of Section 3 of the said Act direct that this order be published in the Gazette.

[43] Notification No. 735/Ka-4-4-EM.-82, dated March 21, 1982, published in U.P. Gazette, Extraordinary, dated 21st March, 1982.

In exercise of the powers under Section 3 of the Uttar Pradesh Essential Services Maintenance Act, 1966 (U.P. Act No. 30 of 1966

), the Governor being satisfied that in the public interest it is necessary and expedient so to do, is pleased to prohibit strikes for a period of six months in all Class III (Ministerial) and Class IV services in connection with the affairs of the State of Uttar Pradesh.

[44] Notification No. 2110/XV-X-82-2(3)-82, dated April 28, 1982, published in U.P. Gazette, Extraordinary, dated 28th April, 1982.

In exercise of powers under sub-section (1) of Section 3 of the Uttar Pradesh Essential Services Maintenance Act, 1966 (U.P. Act No. XXX of 1966), the Governor being satisfied that in the public interest it is necessary and expedient so to do, is pleased to prohibit, with immediate effect, strikes in every non-teaching services in the Agra University and Colleges affiliated to the Agra University and is further pleased to direct under sub-section (2) of the said section that this order shall be published in the Gazette.

[45] Notification No. 2803P-2/82-23-4-E-H-66, dated May 21, 1982, published in U.P. Gazette, Extraordinary, dated 27th May, 1982.

In exercise of the powers under sub-section (1) of Section 3 of the Uttar Pradesh Essential Services Maintenance Act, 1966 (U.P. Act No. XXX of 1966) the Governor is pleased to order that during a period of six months from the date of publication of this order, strikes are prohibited in all services under the Uttar Pradesh State Electricity Board; and under sub-section (2) of the said section, to direct that this order shall be published in the Gazette.

[46] Notification No. 2812/XXX-2-60-N-73, dated June 15, 1982, published in U.P. Gazette, Extraordinary, dated 15th June, 1982.

In exercise of the powers under sub-section (1) of Section 3 of the Uttar Pradesh Essential Services Maintenance Act, 1966 (U.P. Act No. XXX of 1966), the Governor is pleased to prohibit for a period of six months, with effect from June 15, 1982 all strikes in services in connection with the affairs of the Uttar Pradesh State Road Transport Corporation and also by services under the Transport Commissioner, Uttar Pradesh.

2. The Governor is further pleased to direct under sub-section (2) of Section 3 of the said Act, that this Order shall be published in the official Gazette.

[47] Notification No. 2732/XV-10-82-10(3)-82, dated July 9, 1982, published in U.P. Gazette, Extraordinary, dated 9th July, 1982.

In exercise of the powers under sub-section (1) of Section 3 of the Uttar Pradesh Essential Services Maintenance Act, 1966 (U.P. Act No. XXX of 1966), the Governor, being satisfied that in the public interest it is necessary and expedient so to do, is pleased to prohibit, with immediate effect, strikes in every non-teaching service in the Rohilkhand University and colleges affiliated to the Rohilkhand University and is further pleased to direct under sub-section (2) of the said

section that this Order shall be published in the Gazette.

[48] Notification No. 2962-T/XVIII-Pra. Shi. 1-1-443-T-82, dated August 6, 1982, published in U.P. Gazette, Extraordinary, dated 6th August, 1982.

In exercise of the powers under sub-section (1) of Section 3 of the Uttar Pradesh Essential Services Maintenance Act, 1966 (U.P. Act No. XXX of 1966), the Governor is pleased to prohibit for a period of three months from the date of publication of this Order in the Gazette, all strikes in services in connection with the affairs of the University of Roorkee, Roorkee.

2. The Governor is further pleased to direct, under sub-section (2) of the said section that this Order shall be published in the official Gazette.

[49] Notification No. 1072/XX-E-1-8-1-83, dated February 27, 1983, published in U.P. Gazette, Extraordinary, dated 27th February, 1983.

Whereas the Governor is satisfied that in the public interest it is necessary and expedient so to do, in exercise of powers conferred by sub-section (1) of Section 3 of the Uttar Pradesh Essential Services Maintenance Act, 1966 (U.P. Act No. XXX of 1966), the Governor is pleased to prohibit strikes in all services of U.P. Civil Secretariat, during a period of six months from the publication of this Order in the Gazette.

2. Under sub-section (2) of the said section, the Governor is further pleased to direct that this order shall be published in the Gazette.

[50] Notification No. 2913/XX-X-83-5(7)-83, dated June 15, 1983, published in U.P. Gazette, Extraordinary, dated 15th June, 1983.

In exercise of the powers under sub-section (1) of Section 3 of the Uttar Pradesh Essential Services Maintenance Act, 1966 (U.P. Act No. XXX of 1966), the Governor being satisfied that in the public interest it is necessary and expedient so to do, is pleased to prohibit, with immediate effect, strikes in every non-teaching service in the Kanpur University and the Colleges affiliated to the Kanpur University and is further pleased to direct that under sub-section (2) of the said section that this order shall be published in the Gazette.

[51] Notification No. 2833/XII-C-I-83-Bhandaragar 22-1979, dated June 28, 1983, published in U.P. Gazette, Extraordinary, dated 28th June, 1983.

In exercise of the powers under sub-section (1) of Section 3 of the Uttar Pradesh Essential Services Maintenance Act, 1966 (U.P. Act No. 30 of 1966

); the Governor is pleased to order that for a period of six months from the date of publication of this Order, strike by services, under the Uttar Pradesh State Warehousing Corporation is hereby prohibited and under sub-section (2) of the said section, the Governor is further pleased to direct that this Order shall be published in the Gazette.

[52] Notification 6803/XIV-1-21-81, dated November 29, 1983, published in U.P. Gazette, Extraordinary, dated November 29, 1983.

In exercise of the powers under sub-section (1) of Section 3 of the Uttar Pradesh Essential Services Maintenance Act, 1966 (U.P. Act No. XXX of 1966), the Governor is pleased to prohibit for a period of six months with immediate effect, strikes in all public services in connection with the affairs of the State of Uttar Pradesh under the Forest Department.

The Governor is further pleased to direct under sub-section (2) of Section 3 of the said Act that this order be published in the Gazette.

[53] Notification No. 1570/XII-C-I-200(2)-86, dated April 28, 1986, published in the U.P. Gazette, Extraordinary, Part-4, Section (Kha), dated 28th April, 1986.

In exercise of the powers under sub-clause (vi) of clause (o) of Section 2 of the Essential Services Maintenance Act, 1966 (No. XXX of 1966), the Governor is pleased to declare the services under the Uttar Pradesh Primary Agricultural Co-operative Credit Societies Centralised Services formed under the Uttar Pradesh Primary Agricultural Co-operative Credit Societies Centralised Service Rules, 1976, published with Government Notification No. C-91/XII-C-2-1976, dated August 19, 1976, to be essential services, for the purposes of the said Act.

[54] Notification No. 384/KX-1-89-132-Sa-89, dated October 11, 1989, published in the U.P. Gazette, Extraordinary, Part 4, Section (Kha), dated 11th October, 1989.

Whereas, the State Government is satisfied that in the public interest, it is necessary and expedient so to do;

Now in exercise of the powers under sub-section (1) of Section 3 of the Uttar Pradesh Essential Services Maintenance Act, 1966 (Uttar Pradesh Act No. XXX of 1966), the Governor is pleased to order that, during a period of six months

commencing from October 11, 1989, strikes are prohibited in all services under all Nagar Mahapalikas, Nagarpalikas, Town Areas and Notified services of Uttar Pradesh, and under sub-section (2) of the said section to further direct that this Order shall be published in the Official Gazette, with a view to bringing it to the notice of persons affected by it.

[55] Notification No. 2191/Sec-3/V-1990, dated April 5, 1990, published in the U.P. Gazette, Extraordinary, Part 4, Section (Kha), dated 5th April, 1990.

Whereas, the State Government is satisfied that in the public interest it is necessary and expedient so to do, the Governor, in exercise of the powers under sub-section (1) of Section 3 of the Uttar Pradesh Essential Services Maintenance Act, 1966, hereby prohibits with immediate effect strike in the services of doctors and other hospital staff of all categories under the State, and under sub-section (2) of Section 3 of the said Act, directs that this Order be published in the Gazette.

[56] Notification No. 358/Section-8/V-1991, dated January 18, 1991, published in the U.P. Gazette, Extraordinary, Part 4, Section (Kha), dated 18th January, 1991.

In exercise of the powers under sub-section (1) of Section 3 of the Uttar Pradesh Essential Services Maintenance Act, 1966, hereby prohibits with immediate effect strike in the services of all categories of hospital staff and all other categories of officers and other staff employed in the medical and health services of the State and under sub-section (2) of Section 3 of the said Act directs that this order be published in the Gazette.

[57] Notification No. 1110/XV-7-1(16)-1980, dated April 6, 1991, published in the U.P. Gazette, Extraordinary, Part 4, Section (Kha), dated 6th April, 1991.

Whereas, the State Government is satisfied that in the public interest it is necessary and expedient to do so, the Governor, in exercise of the powers under sub-section (1) of Section 3 of the U.P. Essential Services Maintenance Act, 1966 (U.P. Act No. XXX of 1966), hereby prohibits, with immediate effect, strike in every service under an educational institution recognised by the Director of Education, Uttar Pradesh or by the Board of High School and Intermediate Education, Uttar Pradesh and to direct under sub-section (2) of the said section, that this order be published in the Official Gazette.

[58] Notification No. 1498/IX-1-94-41-SA-92, dated March 30, 1994, published in the UP, Gazette, Extraordinary, Part 4, Section (Kha), dated 30th March, 1994.

Whereas the State Government is satisfied that in public interest, it is necessary and expedient so to do, therefore, in exercise of the powers under sub-section (1) of Section 3 of the Uttar Pradesh Essential Services Maintenance Act, 1966 (U.P. Act No. XXX of 1966), the Governor is pleased to order that during a period of six months commencing from March 30, 1994 strikes are prohibited in all services under all Nagar Mahapalikas, Municipalities, Town Areas and Notified Areas in Uttar Pradesh, the Governor is further pleased under sub-section (2) of Section 3 of the aforesaid Act to direct that this Order shall be published in the Official Gazette, with a view to bringing it to the notice of persons affected by this Order.

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